

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ARI GANELES and ELINOR ARZT GANELES,

Index No. 159295/2014

Plaintiffs ,

**VERIFIED
AMENDED COMPLAINT**

-against-

THE MADISON SQUARE GARDEN COMPANY,

Defendant.
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Plaintiffs, by their attorneys, Jaroslawicz & Jaros PLLC, complaining of the defendant, upon information and belief, alleges as follows:

THE PARTIES

1. At all times hereinafter mentioned, plaintiffs are residents of the State of New York.
2. At all times hereinafter mentioned, plaintiffs are husband and wife.
3. At all times hereinafter mentioned, defendant is a foreign corporation, duly organized and existing under and by virtue of the laws of the State of Delaware, authorized to do business and doing business in the State of New York.
4. At all times hereinafter mentioned, defendant owns a major entertainment center known as Madison Square Garden located at 4 Pennsylvania Plaza, New York, New York 10001.
5. At all times hereinafter mentioned, defendant operates Madison Square Garden.

6. At all times hereinafter mentioned, defendant maintains Madison Square Garden.

7. At all times hereinafter mentioned, defendant is supposed to provide adequate security for events at Madison Square Garden.

THE UNDERLYING FACTS

8. On or about August 7, 2014, plaintiffs attended a Billy Joel concert at Madison Square Garden.

9. Plaintiffs were seated in Section 227 of the arena.

10. Seated in front of the plaintiffs were several persons who were openly and obviously drunk and intoxicated.

11. At one point an usher was called after the intoxicated persons in front of plaintiffs spilled beer on the persons sitting in front of them.

12. The usher failed to remove the intoxicated patrons from the arena or to call security.

13. Instead, the defendant continued to provide alcoholic beverages, including beer and liquor, to the visibly intoxicated patrons.

14. The visibly intoxicated patrons attacked plaintiff Ari Ganeles, pulled him over the seats and proceeded to beat him mercilessly, causing him to suffer severe and permanent personal injuries.

15. Plaintiff's injuries were caused at least in part by the defendant's negligent conduct.

16. Defendant has refused to reveal the identity of the persons who assaulted and beat the plaintiff, although they have that information in their possession (see letter dated August 28, 2014, Exhibit A).

17. Defendant outrageously demanded that plaintiffs provide a release to Madison Square Garden in order to reveal this information (Exhibit A).

18. This type of behavior by the defendant, coupled with other behavior as set forth below, which is beyond the bounds of common decency and its obligation as a major entertainment center, entitles plaintiffs to punitive damages.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ARI GANELES**

19. Defendant, by its agents, servants and/or employees, was reckless, careless and negligent in, among other things, failing to have adequate and proper security; in failing to eject intoxicated patrons after they spilled beer and annoyed other patrons and it was called to defendant's attention; in failing to follow its internal rules and regulations; in continuing to serve alcoholic beverages to visibly intoxicated patrons; in failing to pay adequate attention to what occurred; in seeking to conceal and cover-up what had occurred; in refusing to reveal the identities of those persons involved without a release; in preventing plaintiff from getting immediate medical care; in failing to call for medical assistance; in violating applicable laws, rules and regulations; and defendant was otherwise reckless, careless and negligent.

20. As a result of the defendant's negligence, plaintiff was caused to suffer severe and permanent personal injuries to his right arm, shoulder and other parts of the body;

fracture of the right humerus; torn right rotator cuff; fracture of the nose; injury to his face, head and right eye; lacerations; fractured ribs; cosmetic deformity; scarring; cosmetic deformity; extreme pain and suffering; mental anguish and distress; psychological injury; required hospital and medical care and attention, and will require such care and attention in the future; requires physical therapy; unable to attend to his usual duties, leisure activities and vocation; has become substantially disabled; and plaintiff has been otherwise damaged, all of which damages are permanent in nature and continuing into the future.

21. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendant.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ARI GANELES**

22. Plaintiffs hereby repeat, reiterate and reallege each of the foregoing allegations with the same force and effect as if more fully set forth at length herein.

23. Defendant generates a large part of its revenue, including at concerts, through the sale of alcoholic beverages, including beer and liquor; the exact amount of revenue generated by such sales is presently unknown to plaintiffs.

24. Defendant encourages patrons to purchase alcoholic beverages and, in fact, arranges to deliver such beverages to the patrons' seats, as well as permitting them to purchase the beverages at a food center to take back to their seats.

25. Defendant continues to serve alcoholic beverages to patrons even when it knows they are intoxicated.

26. Defendant served and continued to serve alcoholic beverages to the persons who beat the plaintiff after knowing that they were openly and visibly intoxicated.

27. Defendant's conduct is in direct violation of GOL § 11-100 and Alcoholic & Beverage Control Law § 65.

28. Defendant's violation of these laws was a contributing cause to plaintiff's injuries as set forth above.

29. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendant, including punitive damages for defendant's willful violation of the law.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ARI GANELES**

30. Plaintiffs hereby repeat, reiterate and reallege each of the foregoing allegations with the same force and effect as if more fully set forth at length herein.

31. Most, if not all, of the defendant's security personnel, particularly higher ranking personnel, are either former police officers or law enforcement personnel, or police officers or law enforcement personnel who are moonlighting as part of the security detail at Madison Square Garden.

32. It has been determined that the two males who assaulted the plaintiff and that were accompanied by two female patrons, were, in fact, police officers.

33. When defendant's security personnel determined that those who had beaten the plaintiff were police officers, they sought to cover up what had occurred.

34. They failed to arrest the perpetrators, including the two police officers and two females who accompanied them, but instead released them and had the plaintiff falsely

arrested and charged with disorderly conduct and arranged to contact the Patrolmen's Benevolent Association in order to protect the police officers who had beaten the plaintiff.

35. This defendant, through its agents, servants and security personnel, intended to confine the plaintiff and falsely charge him with disorderly conduct in order to cover up what had occurred when plaintiff was assaulted by two police officers who identified themselves as such to the defendant's personnel.

36. This defendant had full knowledge that plaintiff had not acted in a disorderly manner but rather was the victim of a vicious assault and battery and may, in fact, have videos demonstrating what occurred, but without probable cause and a legitimate basis caused the plaintiff to be arrested and maliciously prosecuted.

37. Plaintiff was fully conscious that he was being falsely charged with a crime and being arrested and confined. Plaintiff did not consent to this confinement and his false arrest; and the confinement was not otherwise privileged.

38. This defendant, through its security personnel, who are all former police officers, or police officers, affirmatively acted to falsely arrest the plaintiff in order to cover up the improper and criminal acts of the two police officers who were attending the concert and had beaten the plaintiff.

39. Under no rational circumstances would any police officer or other security personnel – who was *not* acting to protect the two police officers who had beaten the plaintiff – have arrested the plaintiff and permitted the police officers and their female

companions who had viciously beaten him to leave without any charges being brought against them.

40. Without the defendant's security personnel inducing the arresting officers to arrest and causing the plaintiff to be arrested in order to protect the police officers who had beaten him, plaintiff in any rational set of circumstances would not have been charged with disorderly conduct and arrested and the persons who had beaten him been permitted to leave and not have charges brought against them.

41. In order to cover up what had occurred and their own misconduct, as set forth above, defendant, knowing plaintiff had not committed any crime, caused and permitted plaintiff to be falsely arrested.

42. As a result of defendant's conduct, plaintiff's reputation has been harmed; plaintiff suffered emotional harm and mental anguish and distress; plaintiff incurred legal fees to a criminal lawyer in order to protect and defend himself; and plaintiff has been otherwise damaged.

43. By reason of the foregoing, plaintiff is entitled to recover all of his damages, including punitive damages, from the defendants.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ARI GANELES**

44. Plaintiffs hereby repeat, reiterate and reallege each of the foregoing allegations with the same force and effect as if more fully set forth at length herein.

45. This defendant, through its agents, servants and security personnel who are either ex-police officers, or off-duty moonlighting police officers, has a good relationship

with the New York City Police Department and in order further that relationship and to cover up that the two police officers and their female companions had viciously beaten the plaintiff, willfully and falsely brought criminal charges against the plaintiff who was the victim of alleged disorderly conduct, and brought no charges against the two police officers or the two females accompanying them who had beaten the plaintiff.

46. There was no probable cause to bring any criminal charges against the plaintiff who was the victim of a vicious beating and was not in any way acting in a disorderly manner.

47. Criminal charges were brought against the plaintiff out of actual malice in order to assist the two police officers and the females who had accompanied them, who had actually beaten the plaintiff, in covering up what had occurred.

48. All criminal charges against the plaintiff were dismissed; plaintiff was never indicted; and there was never any trial because there was never any basis to commence criminal proceedings against the plaintiff in the first place.

49. In order to cover up what had occurred and their own misconduct, as set forth above, defendant caused and permitted plaintiff to be maliciously prosecuted. Despite knowing there was no basis for any of the charges brought against plaintiff or for the plaintiff to be prosecuted, defendant sought and permitted plaintiff to be prosecuted for a crime he had not committed..

50. As a result of defendant's conduct, plaintiff's reputation has been harmed; plaintiff suffered emotional harm and mental anguish and distress; plaintiff incurred legal

fees to a criminal lawyer in order to protect and defend himself; and plaintiff has been otherwise damaged.

51. Defendants did so maliciously.

52. All charges against the plaintiff were dismissed.

53. By reason of the foregoing, plaintiff is entitled to recover all of his damages, including punitive damages, from the defendants.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ARI GANELES**

54. Plaintiffs hereby repeat, reiterate and reallege each of the foregoing allegations with the same force and effect as if more fully set forth at length herein.

55. This defendants, through its agents, servants and personnel, including security personnel, in conspiring with other police officers who arrived at the scene and under color of State Law, caused the plaintiff to be deprived of his civil and constitutional rights in violation of 42 U.S.C. 1983, 1985 and 1988, *et seq.*

56. In order to cover up a vicious beating of the plaintiff by two police officers and the females accompanying them, this defendant and its security personnel arranged to file charges of disorderly conduct against the plaintiff; had the plaintiff falsely arrested and maliciously prosecuted; and failed to detain or arrest those who had actually beaten the plaintiff.

57. The action taken by the police officers who filed the charges against the plaintiff were in conspiracy with the defendant, its agents, servants and employees, who were former police officers, or moonlighting police officers or sought to ingratiate

themselves with the New York City Police Department by covering up the criminal acts by the two police officers.

58. By reason of the foregoing, plaintiff, who was viciously beaten, had false charges brought against him, and was maliciously prosecuted has been damaged as aforesaid.

59. The defendant who conspired to violate the civil rights of a citizen of the United States is jointly and severally liable with the police officers who were acting under color of state law who actually filled out the charges, arrested him, and caused him to be confined in a jail cell and continued to maliciously prosecute the plaintiff.

60. The defendant and its personnel knew the plaintiff had not been guilty of any disorderly conduct but caused the plaintiff to be arrested while it took no action against the police officers and the two women accompanying them who had actually beaten the plaintiff.

61. By reason of the foregoing, plaintiff has been damaged as aforesaid.

62. By reason of the foregoing, plaintiff is entitled to recover all damages properly recoverable pursuant to 42 U.S.C. 1983 *et seq.*, including costs, attorneys' fees and punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ELINOR ARZT GANELES**

63. Plaintiffs hereby repeat, reiterate and reallege each of the foregoing allegations with the same force and effect as if more fully set forth at length herein.

64. That at all times hereinafter mentioned, the plaintiff was the lawful wife of Ari Ganeles and as such was entitled to his society, support, services and consortium.

65. By reason of the defendant's conduct as aforesaid, the plaintiff was deprived of the society, support, services and consortium of her husband; suffered mental anguish in seeing her husband brutally beaten while in the zone of danger.

66. If, in fact, at the time of trial, plaintiff is not entitled for loss of consortium claims under the Dram Shop Act, then her claims are limited to the other causes of action for which loss of services and consortium damages are recoverable.

67. By reason of the foregoing, the plaintiff is entitled to recover all of her damages from the defendant.

WHEREFORE, plaintiffs demands judgment against the defendant, to recover for all of their damages, including punitive damages, all together with the attorneys' fees and costs and disbursements of this action.

JAROSLAWICZ & JAROS, LLC
Attorneys for Plaintiff
225 Broadway, 24th Floor
New York, New York 10007
(212) 227-2780

By: _____

David Jaroslawicz

DAVID JAROSLAWICZ, a member of the firm of JAROSLAWICZ & JAROS, attorneys for the plaintiff(s) in the within action, duly admitted to practice in the Courts of the State of New York, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR:

That he has read the foregoing **Amended Complaint** and knows the contents thereof; that the same is true to his own knowledge except as to those matters therein stated to be alleged upon information and belief, and that as to those matters, he believes them to be true.

Affiant further states that the source of his information and the grounds of his belief are derived from the file maintained in the normal course of business of the attorneys for the plaintiff(s).

Affiant further states that the reason this affirmation is not made by the plaintiff(s) is that at the time this document was being prepared, the plaintiff(s) was (were) not within the County of New York, which is the County where the attorney for the plaintiff(s) herein maintains his office.

Dated: New York, New York
November 17, 2014



DAVID JAROSLAWICZ

EXHIBIT A



**THE
MADISON SQUARE GARDEN
COMPANY**

HAL WEIDENFELD
SENIOR VICE PRESIDENT
LEGAL & BUSINESS AFFAIRS
FACILITIES & LABOR

August 28, 2014

David Jaroslawicz, Esq.
Jaroslawicz & Jaros LLC
225 Broadway, 24th Floor
New York, NY 10007

RE: Ari Ganeles
Date of Occurrence August 7, 2014

Dear Mr. Jaroslawicz:

We are in receipt of your letter dated August 14, 2014 addressed to Lawrence Burian, which was forwarded to me for response.

First and foremost, we hope Mr. Ganeles is recovering from any injuries he sustained during the incident you described.

In accordance with your request, we have implemented a preservation hold on any internal video surveillance files from August 7, 2014; any incident reports and/or witness statements from that night; and any reports of medical attention being paid to Mr. Ganeles.

Regarding your request that we provide copies of any of the above materials (to the extent they exist and are in our possession), we are not inclined to depart from our ordinary and customary policy against releasing such materials to third parties, especially without any corresponding offer of a release.

Please direct further correspondence to me to ensure prompt attention.

Sincerely,

Hal Weidenfeld

cc: Lawrence J. Burian, Esq.